

25STCV05270 25STCV05270

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 25STCV05270 Hearing Date: September 21, 2026 Dept: 617

Dept.

617

Date:

9-21-26

Case

#: 25STCV05270

Trial

Date: 1-11-27

JUDGMENT ON THE PLEADINGS

MOVING

PARTY: Defendant, LAD-MB, LLC

RESPONDING

PARTY: Plaintiff, Celene Fregoso

RELIEF

REQUESTED

Motion

for Judgment on the Pleadings as to Third Cause of Action

SUMMARY

OF ACTION

This

is a lemon law action. Plaintiff Celene Fregoso sued Defendant Mercedes-Benz USA, LLC (MBUSA) alleging MBUSA failed to promptly replace her 2023 Mercedes-Benz C-Class or make restitution after it was unable to conform the car to its express warranty after a reasonable number of repair attempts. Plaintiff also asserts a claim for breach of implied warranty against MBUSA. She additionally brings a negligent repair cause of action against Defendant LAD-MB, LLC.

RULING: Granted with
leave to amend.

Defendant LAD-MB moves for judgment on the pleadings as to Plaintiff's third cause of action in her complaint for negligent repair. It argues that Plaintiff insufficiently pleads the element of damages and the claim is barred by the economic loss rule. Plaintiff opposes the motion, contending she adequately pleads her damages and the "component exception" to the economic loss rule applies. Because Plaintiff fails to plead damages, Defendant's motion is granted with leave to amend.

"A motion for judgment on the pleadings serves the function of a demurrer, challenging only defects on the face of the complaint." (Richardson-Tunnell v. School Ins. Program for Employees (2007) 157 Cal.App.4th 1056, 1061.) A defendant may move for judgment on the pleadings if the plaintiff's complaint fails to state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) The motion may be made as to the entire complaint or to any of the causes of action stated therein. (Id. § 438, subd. (c)(2)(A).) The grounds for the motion must "appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Id. § 438, subd. (d).) The plaintiff's factual allegations are accepted as true and are given a liberal construction. (Gerawan Farming, Inc. v. Lyons (2000) 24 Cal.4th 468, 515-16.)

Plaintiff fails to plead the requisite element of damages. Rather, she merely alleges that Defendant's alleged breach "was a proximate cause of Plaintiff's damages." [Compl. ¶ 52.] Plaintiff's prayer for general and special damages is insufficient to plead this element. Not only is her allegation insufficient to plead damages, but it also prevents a determination as to the applicability of the economic loss rule. Without more,

the Court is unable to analyze whether Plaintiff is seeking tort recovery for purely economic losses. (See *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 38.) Because this is Plaintiff's original complaint and there exists a reasonable possibility that she can cure the pleading defect, she is granted leave to amend.

Plaintiff

is granted 30 days' leave to amend. Plaintiff may only add facts in support of the successfully challenged negligent repair claim. (*Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023.) Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Defendant

to give notice.